



POLICE DEPARTMENT

November 14, 2007

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Alicia Gonzalez
Tax Registry No. 926892
Manhattan Traffic Task Force
Disciplinary Case No. 82319/06

The above-named member of the Department appeared before me on September 17, 2007 and September 18, 2007, charged with the following:

1. Said Police Officer Alicia Gonzalez, while assigned to the Manhattan Traffic Task Force, while off duty, in [REDACTED], on or about March 17, 2006, at approximately 0900 hours, did wrongfully engage in conduct prejudicial to the good order, efficiency, and discipline of the Department in that said Officer was belligerent and argumentative toward an individual known to the Department and pointed her finger at said individual's face, called him a "motherfucker" and threatened "to get" him. (*As amended*)

P.G. 203-10, Page 1, Paragraph 5 – PROHIBITED CONDUCT

The Department was represented by Krishna O'Neal, Esq., Department Advocate's Office, and the Respondent was represented by John Tynan, Esq.

The Respondent, through her counsel, entered a plea of Not Guilty to the subject charge. A stenographic transcript of the trial record has been prepared and is available for the Police Commissioner's review.

DECISION

The Respondent is found Guilty in part and Not Guilty in part of the sole Specification.

EVIDENCE

The Department's Case

The Department called Brian Leavy-DeVale, Maribel Torres, and School Safety Agent Tyesha Nixon-Shaw as witnesses.

Brian Leavy-DeVale

Leavy has been principal of PS 257 for six years; prior to that, he was a teacher at I.S. 318 for ten years. He has also been a District Supervisor of Bilingual and ESL programs at District 14, in Brooklyn. P.S. 257 covers grades Pre-K to five and has about 550 students. Leavy stated that the parent-teacher relationship at P.S. 257 is "fantastic" and that he takes great pride in it.

Leavy testified that he came to know the Respondent as the result of an incident that occurred on March 17, 2006 at his school. He stated that the Respondent's daughter, [REDACTED], was a kindergarten student in the school at that time.

Leavy testified that on that day the school was celebrating St. Patrick's Day so the teachers dressed up as leprechauns in green. He said that two paraprofessionals went around giving out gold coins that are really chocolate candies. They also read books to nurture multiculturalism. He stated that the activities start "after the day is up and running."

He testified that he was not able to participate because of a meeting with the Respondent. "She walked in unannounced, signed in at the door. I came to my office that morning, and I was told there was an irate parent demanding to see [me]."

Leavy testified that there is a sign-in procedure at the school which requires people to show identification to the school safety agent at the door. He learned from School Safety Agent (SSA) Nixon that the Respondent had used her Police Department identification.

He testified that when he got to his office after making morning rounds he was told that a parent "must" see him and that it was very important. He agreed and the Respondent came in with a "gentleman that escorted her." He said her daughter, [REDACTED] was also there.

He said he sensed hostility right at the start of the meeting. She had complaints about a little boy from the school, [REDACTED], who had inappropriately hugged and tried to kiss her daughter. When asked why she thought it was such a big deal the Respondent stated that she did not want anyone touching her child. Leavy explained that [REDACTED] has muscular dystrophy. He asked if she knew the boy involved to which the Respondent replied, "I don't care who it is. I'm a Police Officer, and you better do something about this."

Leavy stated that [REDACTED]'s grandmother is a parent volunteer at the school and that she and [REDACTED] came to the office. He stated that he explained to the Respondent that [REDACTED] comes from a family that hugs a lot and that [REDACTED] had done something nice for him and he had turned to give her a hug. Nonetheless, the grandmother told [REDACTED] not to do it again and [REDACTED] apologized.

After [REDACTED] and his grandmother left, Leavy said that he thought the matter was taken care of but the Respondent started to yell at him stating: "I want this taken care of. I'm going to do a report. I know how to investigate this. I'm a Police Officer. You are

going down.” He described her comments as “All kinds of madness” and stated that he could not recall all the details.

Leavy testified that [REDACTED] was five years old at the time and that he has a health aide and gets “adapted physical education” and all types of services as a result of his disability.

He testified that in addition to himself the Respondent, her daughter [REDACTED], [REDACTED]’s grandmother, [REDACTED]’s teacher, Ms. Aoki, and the assistant principal were present during the meeting.

Leavy stated that Ms. Aoki was sent for as soon as they could get coverage, which was about 15 minutes into the meeting, and that Ms. Torres, the assistant principal, had been present throughout.

He noted that Ms. Aoki was brought down because the Respondent had brought up an allegation that her child had been bruised a month before and that her child was not safe in the class. In that incident, the Respondent claimed that a different child, not [REDACTED], had pinched her daughter.

There was also a complaint that her daughter had not been allowed to use the bathroom one time. He said there was a host of angry allegations that Ms. Gonzalez was leveling at the teacher. He described her as being “very confrontational, very angry,” and “nasty.” He described the volume of her voice as alternating from “yelling at me to just sneering.”

Leavy noted that the Respondent’s daughter [REDACTED] was not present in the room at the beginning of the meeting but came in when [REDACTED] was brought in and stayed

for different parts of the meeting after that. The Respondent did not suggest that her daughter go to class and the meeting lasted for about two hours.

When asked how the meeting ended, Leavy stated that he felt he had exhausted every nicety and had done everything he could: "I put my hands on the table and I said on that note, 'I'm going to end this meeting. I'm sorry you are not happy. There is nothing more I can do.'"

He stated that he hoped that would end the meeting however he claimed that the Respondent stated: "Nothing is over, motherfucker, and I'm going to get you, I'm going to the media. I know how to investigate this shit. I'm a cop. You are going down. I'm going to take you. I know how to do this; I'm going to investigate you."

Leavy indicated that during this time the Respondent was pointing at him. He then told her that he was going to report her to the Civilian Complaint Review Board (CCRB) because she was engaging in conduct unbecoming a police officer. He stated that he came from a family of police officers.

Leavy testified that he started walking to the door as he was being yelled at by the Respondent who was screaming profanities in response to his comment that he would report the matter. He testified: "She yelled, screaming profanity, she is going to get everyone." He stated that as the Respondent left the office she stuck her middle finger up and said, "If you are going to report this, report this, motherfucker."

Leavy said that he also asked for the name of her commanding officer as he intended to file a report. He indicated that at this time [REDACTED] was by the Respondent's side and was led out of the office by either the Respondent or the gentleman who accompanied the Respondent that day.

He stated that there were very few people in the main outer office: two children, secretaries, office aides and several teachers. He stated that they reacted to the Respondent's statement by saying, "Oh my God, I can't believe it." He said people were covering their face or had looks of disbelief. Leavy said he did not yell or curse in response.

Leavy stated that prior to that date, he did not know that the Respondent was a police officer. He learned that she was a police officer when she repeatedly mentioned that she was one during their meeting. He also learned that the Respondent was a police officer when he spoke with SSA Nixon.

After the Respondent left, Leavy said that he spoke with SSA Nixon, who told him that the Respondent had showed a Police Department ID with some sort of inscription on it.

Leavy identified a copy of the emergency contact card, also referred to as a "blue card," for [REDACTED] that was filled out by the Respondent, which went into evidence as Department's Exhibit (DX) 1. It is optional for parents to list their employment information on the blue card, but it was observed that the Respondent did not indicate anything about the nature of her employment on it.

Leavy indicated that he memorialized the incident immediately by asking the five or six people in the office who had seen the incident to prepare a statement about what had occurred. He said that Ms. Baez, the payroll secretary, drafted it but he also remembered that he dictated it and asked people if it described what they saw. They replied, "Yes."

The written statement was received in evidence on consent as DX 2. It is on school letterhead and signed by six people: a Ms. Rose Maldonado, a Ms. Arlene Sosa, a Ms. G. Santana-Bacz, a Mr. Melvin Martinez, a Mr. William Williams, and a Mr. A. Brea. The body of the statement reads as follows:

On March 17, 2006 at approximately 10:45 AM in the Main Office of the school, Ms. Alicia Gonzalez used obscene language towards Mr. Leavy.

Ms. Gonzalez pointed her finger at Mr. Leavy's face and said, "I'm not finished with you motherfucker, I'm going to the press." She then stormed out of the office yelling, "Fuck you."

Leavy further testified that he had never heard of any complaints by the Respondent before that day nor had he heard any complaints about [REDACTED]

On cross-examination Leavy agreed that he had described the Respondent as acting "ghetto" in his office and that that is the word he used. Leavy confirmed that for the St. Patrick's Day celebration in his school people dress in green like leprechauns and gave out gold coin candies. He noted that celebrating Irish Catholic culture in America was part of the American experience. He stated that he celebrates St. Patrick's Day the same way he celebrates Hanukah.

He indicated that his paramount job in dealing with children is to make sure that they are safe and well educated. He acknowledged that the Respondent brought to his attention the fact that she felt her daughter was unsafe in school. He acknowledged that he had been inconvenienced by the Respondent, who, he said, was "overblowing" a minor matter and that he did not believe her child was in danger. He acknowledged that another child hugging and kissing her child in class is not within the guidelines set by the Board of Education.

Leavy then clarified that the New York City discipline code does not apply at that age and that there are different standards and different interpretations. He noted that under seven years old there are different infractions and punishments and that a child of five may not be as understanding as a child of seven.

He stated that he tried to explain this to the Respondent who seemed to be blowing up about complaining that he had not done anything about it and demanding to know what he was going to do.

He said that he felt the apology was appropriate so that the child would understand that the conduct was improper. He noted for a child of that age it is more important that they learn their lesson than that they be disciplined.

Leavy agreed that the Respondent had other complaints during the meeting. He agreed that she had complained that someone pinched her daughter but noted that it was not reported for over a month. He also acknowledged that the Respondent complained that the teacher, Aoki, treated her daughter differently than the others, but he did not recall the Respondent saying that Aoki refused to help her daughter.

Leavy agreed that there is nothing improper about showing a police ID to the SSA, but when asked if it was appropriate to say she was a police officer he noted that she said it repeatedly in a menacing manner. He asserted that he never asked about her employment.

He claimed she kept saying, "I'm a cop" in his face as if there were some implied threat. He acknowledged that she did not show her firearm and that she did not threaten to have him arrested. He also acknowledged that she threatened to go to the media, which he said was her right, but noted the fact that she also repeatedly mentioned that she

was a cop indicated that "several things were implied there." He believed that he had called the police to say that he was threatened.

With regard to the letter (DX 2) he stated that: Ms. Maldonado is a school aide; Ms. Arlene Sosa is a guidance counselor; Ms. Baez is a school secretary; Mr. Martinez is now an assistant principal but, at the time, was a gym teacher; Mr. Williams was a math coach at the time; and Mr. Brea is a bilingual teacher. Leavy acknowledged that all of these people reported to him. He denied dictating the entire contents of the letter, describing his input as "fifty-fifty."

He said he asked for a general statement assuming that when the police came they would take detailed individual statements. He indicated that the police did later interview the people individually.

Leavy indicated that even though the Respondent was yelling during the two-hour meeting, he never asked her to leave. He said he was trying to figure out where this was going. He said he tried to calm the Respondent down. He denied patronizing her and said that he was very polite, "a gentleman," noting that she is a parent and "that demands respect in and of itself."

He agreed that the witness statement (DX 2) mentions only two times that the Respondent cursed, but noted that it was "twice for the record, two is as good as ten to me." He acknowledged that the witness statement (DX 2) did not mention the Respondent putting up her middle finger to him. He said that it is in the one that "we gave to the CCRB."

He agreed that he substantiated the Respondent's claim regarding the child in the school (in reference to [REDACTED]). He stated that "we had an apology issue. The child was told not to do it again. We were moving on but that was not enough for the mother."

He stated that he could not substantiate the other charges. The one involving the bruise was not reported at the time and there would be no bruise to look at a month later. He said that he did ask to see the bruise and was told by the Respondent that it "happened a long time ago."

Leavy acknowledged that the Respondent's male companion was with her in the room the entire time and that he remembered him sitting there quietly and politely.

On questioning by the Court he indicated that he saw the Respondent in the room and identified her. He also said that before the teacher, Aoki, came down to the meeting, the assistant principal and the fiancé of the Respondent were present in the room. He noted that the child was sitting just at the door (but he could not recall if it was inside or outside of the office) and came in one or two times, that he was behind a desk and that Torres may have come back towards him once or twice as she was working.

On re-direct examination Leavy explained that it was an inconvenient time to have a meeting with the Respondent because he thought something could be resolved and that he did not expect the meeting to go "the way it did." He said that the repeated mention by the Respondent that she was "a cop" was intended as a threat and that it had no bearing on the outcome of her daughter. He noted that it kept coming up that she knew how to conduct an investigation. But he acknowledged that he did not know "what the woman wanted."

With reference to the witness statement (DX 2), he stated that it was just intended to be a synopsis and that within days he gave a more complete statement to officers from the Department.

On re-cross-examination Leavy acknowledged that the witness statement (DX 2) was prepared because he knew the issue would come up in legal proceedings. He also acknowledged that, at some point, he spoke to [REDACTED]. He said he believed that he asked [REDACTED] to speak directly with her teacher, Aoki, and that they ended their conversation with a hug. He acknowledged that he never spoke to [REDACTED] about the incident with [REDACTED].

On further questioning by the Court Leavy indicated that the door to his office, which leads to the outer office, was sometimes open and sometimes closed during the meeting.

Maribel Torres

Torres testified that she is the principal of Public School 157 and has been a principal for about one year. Prior to that, she was an assistant principal at P.S. 257, where she served for three years. Torres indicated that March 17, 2006 was St. Patrick's Day and they had some special events such as a little parade and a search for little gold coins which had chocolate inside. She indicated that the school celebrated holidays on a regular basis and that they would have a pumpkin patch on Halloween and a holiday celebration for Christmas. In February they celebrate African History Month and in March they celebrate St. Patrick's Day.

Torres indicated that the Respondent came to the school shortly after the children arrived at the school and that she did not have an appointment. She was accompanied by her daughter and a gentleman.

Torres noted that she was in the principal's office when the secretary advised them that the Respondent wanted to meet with Mr. Leavy regarding an incident with her daughter. Leavy told the secretary to send them in. The Respondent came in and sat at the desk on the opposite side of Leavy. Her daughter and the gentleman were with her. The Respondent explained that the daughter had been hugged by another student in the class, [REDACTED], and that her daughter felt really uncomfortable with the hug.

Initially, the Respondent was calm. Torres also noted that the principal was calm. The Respondent also mentioned another incident that her daughter witnessed. Leavy said he was not aware of the situation and he explained that he would get the child and that the child would apologize to her daughter.

Torres then stepped out to see if they could find [REDACTED]'s grandmother who was a volunteer at the school. Torres stated that she called the mother at her job and established that it was OK to bring the child, [REDACTED], to apologize as long as the grandmother was there.

Torres reported that the mother said she knew the Respondent and had no idea that there was a problem between the Respondent's daughter and [REDACTED]. After that, [REDACTED] and his grandmother came to the office. They explained that what he did was not necessarily wrong but that he hugged a little girl who felt uncomfortable. They instructed [REDACTED] that he could not just go around hugging anyone outside of his family. They told him he had to ask if he could hug someone. They also told him to apologize.

Torres stated that [REDACTED] did not have a problem and he apologized. Torres could not remember the Respondent's response to the apology but she did recall that the teacher, Aoki, stayed there and there was a conversation about a couple of other incidents where the Respondent felt Aoki was not treating her daughter properly.

Torres also recalled that the Respondent was not satisfied with what Leavy did in regard to [REDACTED]. Leavy explained the protocol and that this was the appropriate procedure for dealing with a five year old child. Torres stated that the Respondent "didn't like the response" and told him that, "I don't like the way you are handling this."

Torres reported that Leavy explained that this is the way he had to handle it and told the Respondent if she was not happy that she could go to his superiors. He told her she could go to the superintendent.

With regard to the kissing incident, Leavy called in the two teachers who supervise the lunchroom. Leavy asked these teachers if they had heard anything about the incident and they stated that they did not.

Torres described the meeting after that as a lot of back and forth with the Respondent stating that she wasn't happy with the outcome and that Leavy was not doing his job appropriately. The Respondent stated that she was going to go to the media because she was not happy with the way Leavy was handling the situation. Torres stated that the Respondent felt her daughter was not safe in the school. Torres said that a usual parent meeting is about half an hour and that this meeting was much longer than that.

Torres testified that as the meeting was about to end she went out to tell the person who was dressed up as a leprechaun to get classes ready so that the event could get started. Torres stated: "As I was in the hallway I heard Ms. Gonzalez (the

Respondent) yelling and cursing Mr. Leavy out.” She stated that the Respondent called Leavy a “motherfucker” and said, “This shit is not going to stay this way.”

Torres reported that Leavy asked for the name of her commanding officer and that the Respondent stuck up her middle finger and said, “Fuck you.” Torres further reported that as the Respondent left the office with her daughter and the gentleman accompanying them, she kept saying, “This is not going to stay this way, this is not going to stay this way.”

Torres said there were about seven people in the outer office including Leavy and herself. She was not sure how many children were there but noted that the office is on the first floor near the kindergarten classes and a restroom that the children use.

Torres said that [REDACTED] was not in the office the entire time. She said that when the Respondent started to get upset Leavy asked that her daughter wait outside.

Torres had no recollection of the Respondent ever contacting the school before that date, regarding the complaint about [REDACTED]. Torres did acknowledge that Aoki had approached her and told her that there was a parent in the class who felt that she was not treating her daughter properly but that the complaint had to do with the daughter getting to school on time and Aoki not allowing her to use the bathroom.

She asked Aoki if she wanted to set up a meeting but Aoki said she would have a conversation with the mother. Torres did not know if that conversation ever took place.

Torres explained that there is a disciplinary code that tells a principal what has to be done. She stated that if there was an altercation or if a child does something wrong the first thing is to contact the parent. If the problem continues there is a teacher, principal and parent meeting with the child.

Torres also explained that there is a hierarchy for making complaints. A complaint about an assistant principal would go to the principal, if there is a complaint about the principal it would go to the superintendent who would call a meeting to advise them of the complaint or reprimand them or otherwise take care of the problem.

Torres stated that she was never contacted by the superintendent with respect to a complaint being filed against her. She indicated that while the Respondent was cursing at the principal in the outer office he kept saying "good-bye." She stated that the principal was not yelling and was calm.

Torres indicated that, during the meeting, the Respondent had made an allegation about some bruising on her daughter. Torres did not know if the incident occurred in the lunchroom or the classroom, but she stated that she did know that someone had pinched her. She further stated that the Respondent indicated that the pinching incident took place "before the hug . . . a little before the hug."

Torres indicated that during the meeting, which lasted "an hour or so," the Respondent identified herself as a police officer "two or three times."

On cross-examination Torres acknowledged that there is nothing unusual about a parent coming to school without an appointment if there is an issue of the child's safety. Torres believed that the Respondent had been to the school before to meet with teachers but she did not know how frequently that had happened.

She acknowledged that the Respondent was not yelling and screaming at the secretaries when she arrived. She indicated that she was positive that Leavy told the Respondent several times that if she was not happy she could take it up with the superintendent. She did not recall if Leavy provided the superintendent's name. He did

tell the Respondent that she could go to the New York City Board of Education headquarters at 131 Livingston Street several times during the conversation but that he did not provide a phone number.

She stated that as to the complaint about two girls in the lunchroom Leavy called the two lunchroom teachers to the office but he did not speak to the girls allegedly involved because he did not know who they were.

With regard to [REDACTED] a being pinched, Torres said that they did not know who did it. She noted that Leavy spent "a great deal of time" speaking to [REDACTED] to try to find out what happened. She stated that he spoke to [REDACTED] a in front of the mother. Indeed, she said that a good portion of the meeting took place between Leavy and [REDACTED].

Torres noted that teachers he called in came and went during the meeting. Otherwise, the office door was closed. She stated that when she heard Leavy say that there was nothing else he could do and that the Respondent should take it up with the superintendent, Torres assumed that the meeting was going to end and she walked out. Shortly after that, she heard the Respondent yelling. In answer to a question on the subject, Torres noted that the Respondent had been yelling before that outburst at the end of the meeting and that she was upset and very agitated. Torres acknowledged that the Respondent was upset and agitated with the way Leavy was handling her complaints. Torres also acknowledged that the yelling in the office before the meeting was called to an end was different than her yelling as the meeting ended, "it was a different yell, her tone was louder." Later she said, "I wouldn't say it was yelling."

Torres acknowledged that there is nothing to prohibit a parent of a child at the school from going to the media to vent their frustration at the school, noting that it is only improper if the allegations are untrue.

Torres acknowledged that the Respondent went to Leavy with several complaints and that there was "in this period" a cursory investigation done. Further, she acknowledged that Leavy told the Respondent if she was unhappy she could go to the superintendent. Torres stated that she was already outside of the office when the meeting was over. She estimated that about 30 seconds passed from the time she heard the Respondent yell up until the time the Respondent left the building. Torres stated, "It's a hallway. . . . It was from the main office all the way out, and then leaving the building." Torres was aware that the Respondent permanently took her child out of the school several days later.

Torres was shown a copy of the witness statement (DX 2) and stated that she was familiar with this type of document and that she didn't sign it because she signed her own statement and gave it to Leavy.

On re-direct examination Torres noted that the issue of reporting to the superintendent first came up after the apology involving [REDACTED]. On re-cross-examination it was established that the mention of the superintendent first came up after all the other incidents had been discussed.

On questioning by the Court, Torres said that the Respondent told Leavy that she worked for the NYPD and that she was a police officer. In her effort to explain the context in which this was said, Torres stated: "In regards to the investigation, following protocol, she wasn't happy with what he was stating, so she said 'You know I'm NYPD.

I'm not happy with what you are telling me. It's not going to stay this way.'" When asked what message she felt the Respondent was trying to convey, Torres said that she was "assuming, maybe, I guess, like an investigation."

School Safety Agent Tyesha Nixon-Shaw

Nixon-Shaw testified that she has been a School Safety Agent (SSA) for three years and that she has been assigned for that time to PS 257. Among her duties she signs visitors in and out of the building and checks their photo identification.

On March 17, 2006 at about 10:53 AM Leavy asked her to come to the main office. He asked if she had seen the parent who had just left the building. She said yes. He asked if that parent had spoken to her and she answered that she did not. Leavy asked if the parent had shown identification and she indicated that the parent had shown her a NYPD ID at about 0929 hours that morning. Nixon-Shaw testified that she was certain it was an NYPD identification card because she has one like it.

On cross-examination Nixon-Shaw indicated that next to the Respondent's name on the sign-in sheet is "0920 hours" and someone, not the Respondent, wrote in "40 Nostrand Avenue." She did not recall if the ID said "restricted" or "modified." She did not recall telling Leavy that she recognized the ID because it said "restricted" or had some other printing on it indicating less than full duty.

Nixon-Shaw was handed the Respondent's driver's license, which was later put in evidence as Respondent's Exhibit (RX) A. Nixon-Shaw said she recognized it and recalled having seen it before. She identified the picture on the license as that of the

Respondent, whom she identified in the courtroom. Nixon-Shaw also indicated that the Respondent was wearing a police uniform in the license picture.

Nixon-Shaw indicated that there was no home address listed on a police ID but the Respondent's home address was on the sign-in sheet.

When asked by the Court how she could tell the Respondent was wearing a police uniform in the license picture, Nixon-Shaw replied, "It looks like from the symbols."

On re-direct Nixon-Shaw indicated that if someone shows ID that does not have the home address, she asks for it. Nixon-Shaw indicated that she wrote in the Respondent's home address on the sign-in sheet. She explained that visitors are not allowed to write their address in the visitor log. After they show her their name and ID, Nixon-Shaw writes in the address next to their name.

On re-cross Nixon-Shaw said that if she was shown an NYPD ID she would not put down that an NYPD ID was used and that she recalled writing in the Respondent's address.

On questioning by the Court, Nixon-Shaw indicated that on March 17, 2006, she was not required to list the type of identification given to her.

The Respondent's Case

The Respondent called Felipe Cuevas as a witness, and she testified in her own behalf.

Felipe Cuevas

Cuevas testified that he works for Wal-Mart, that he is twenty-five years old and that he has been married to the Respondent for about the last year and a half and that he has known her for two years.

He currently lives [REDACTED] but in March 2006 he lived [REDACTED] with the Respondent and her daughter [REDACTED]. He stated that in March 2006, [REDACTED] was six years old and went to PS 257.

On March 17, 2006, he accompanied [REDACTED] and [REDACTED] to school. He stated that the reason they went was that "his daughter" had a black and blue on her leg. She had also told them that some girls were kissing in the lunchroom and that the teacher was not helping her tie her shoes or belt.

He acknowledged that they had no prior appointment with the principal. After they signed in, they were taken to the principal's office. The principal and assistant principal were present.

Cuevas stated that the meeting took one to two hours and that the Respondent did most of the talking. He stated that her voice was calm. He acknowledged that the principal was calm as well. He described the principal as "pretty much trying to brush it off" and that he kept saying that he "never had complaints against her [the teacher]."

When the other child was brought in the room to apologize, Cuevas stated that the principal was saying "maybe it's a mistake; maybe she [REDACTED] was taking it the wrong way." He stated that the principal was "trying to confuse her, whatever."

He stated that up to that point before the meeting ended, the Respondent did not use any profane or foul language. It did not appear to him that she was telling the

principal that she was a police officer to gain some leverage or to threaten him. He said she never mentioned that she was a police officer and that she never took out her ID while he was there. He repeated that the Respondent never said that she was a police officer or a member of the New York City Police Department.

Cuevas asserted that the room to the office was closed all the time during the meeting and that the Respondent and [REDACTED] were present in the room the entire time. He stated that the assistant principal left the room and never came back.

He said the meeting ended when the principal "slapped his hands on the table and said, 'There is no more I can do for you' and just opened the door." Cuevas testified that the principal also said, "There are more kids in the school, I have more cases to attend to."

Cuevas testified that as she was leaving the room, the Respondent asked about the other issue, asking; "There is nothing you can do? You are not going to do anything," and that the principal said "no." Cuevas testified that the Respondent then said she would go to the media. He further stated that the Respondent used no foul or profane language but he did not know if she made any hand gestures or threatening motions. He then clarified by stating that the Respondent merely said she was going to the media and "that was it."

Cuevas asserted that no one raised their voices during the meeting. Cuevas further testified that the principal came out saying that her conduct was "incorrect" and that he was going to make a complaint. He stated that the Respondent merely kept walking and that she never responded to that statement from the principal. The following week, Cuevas and the Respondent signed [REDACTED] out of that school and took her upstate.

On cross-examination Cuevas asserted that both he and the Respondent used their driver's licenses as identification at the front door. He identified [REDACTED] as his "step-daughter" and said she was right next to them during the meeting. He indicated that they moved from [REDACTED], about a week after they made the complaint.

On further cross-examination he confirmed that the purpose of the visit to the school, unannounced, was because of the black and blue mark his stepdaughter experienced. He added that they went to complain about two girls kissing on the lips in the lunchroom. He confirmed that he believed the principal brushed these matters off. He also re-affirmed that during the entire time the Respondent remained calm and never raised her voice, even when the principal threatened to report her.

Cuevas affirmed that he said nothing during the meeting. He stated that he has been with the Respondent three years to date and that at the point in time of this incident he had been in her life for a couple of months.

The Respondent

The Respondent testified in her own behalf. She was appointed on September 29, 2000. After completing the Police Academy, she was assigned to Manhattan South Task Force, the 90 Precinct and Manhattan Traffic Task Force. She has been at Manhattan Traffic Task Force for about five years.

She is currently full duty. She has been married to Cuevas for about one year and three months now. She has one child, [REDACTED], who is seven years old now. In March 2006, she was living at [REDACTED] with [REDACTED], Cuevas,

and [REDACTED] who at that time attended P.S. 257. She was in kindergarten at that time. The year before, [REDACTED] had been in Pre-K at that same school.

On March 17, 2006, the Respondent went to the school very early, at the beginning of the school day. Her daughter had made several complaints about the school and the way she was being treated by her teacher, and she did not want to go to school.

The Respondent testified that the complaints started in about February, with her daughter telling her things the teacher was doing or not doing or not helping her with. She was complaining about certain students. She did not feel comfortable and did not want to go to school.

The Respondent said she chose the 17th because that was her first available day off. She also noted that during the February recess she had noticed a big bruise on the child's leg. She had complained that a boy, not [REDACTED], had hit her repeatedly in the leg to get her not to sit next to him. She acknowledged that she did not call to make an appointment with the school in advance.

The Respondent indicated that she had been to the school before when there had been a doctor's appointment or something to take the child out. The Respondent acknowledged that the first person one encounters on entering the school is the security guard. The Respondent said that on that date she used her New York State driver's license as identification to get into the school. She stated that she went to the school with [REDACTED] Cuevas, and her daughter, [REDACTED].

After signing in, she went to the main office with her fiancé while her daughter went to class. She signed a book at the front desk of the office and requested to see the

principal. She was initially told he was on the telephone. She said she had a brief conversation with the secretary who had a funny hat and that they were laughing about it.

The Respondent testified that she waited about fifteen or twenty minutes before she was able to see the principal. She left the main office and entered the principal's office. The Respondent said that she did not know that Torres was the assistant principal but acknowledged that she was sitting in the office. She said her fiancé was also there. The Respondent claimed that her daughter, [REDACTED], only came down from class when they realized she was going to make a complaint regarding the way her daughter felt.

She said she told Leavy that the reason she came was that she found a bruise on her daughter and she wanted to know why she was not made aware of it noting that usually when there is a problem with kids you will get a letter or you get in contact. "Then I mentioned all the other problems."

The Respondent said that Leavy asked if she had taken a picture of the bruise, which she had not done. Then the Respondent said they went through all the other problems. Her daughter, she said, felt she was being treated unfairly by the teacher. The teacher did not help her put her belt on after she used the bathroom and didn't help with her shoelaces but helped other students. The Respondent stated, "She did not help my daughter, even though she asked her."

The Respondent continued, "We talked about the fact that the other little boy, [REDACTED] hugged and kissed her, and she didn't want to be hugged and kissed, and she felt uncomfortable about that. We also talked about the fact that two little girls had kissed in the cafeteria."

Describing the demeanor of Leavy, the Respondent stated: "When I told him my concerns, he kind of, from the beginning he was like belittling me, correcting my grammar. He was like talking down to me."

The Respondent claimed that Leavy told her he never had problems with the teacher who had been at the school for some years. The Respondent said there can be a first and that she wanted to make a complaint against the teacher. She also said, "I want to make a complaint against the teacher because that was the purpose of me being there, to make a complaint against the teacher, and to solve the problems."

She said that she was in the process of closing on a house and she did not want her daughter to be uncomfortable in the remaining time she was going to be at the school.

The Respondent stated that Leavy sent for [REDACTED] as she did not have exact information such as the names "and everything." She claimed that when Leavy spoke to her daughter he was trying to convince her that she was wrong, that she was reading it wrong, but her daughter insisted, "No, this is how I feel, this is how I felt."

At that point, Leavy brought [REDACTED] in to apologize to her daughter. She said [REDACTED] apologized, then Leavy explained to [REDACTED] that "you can't hug everyone," and "that's it. The kid left." The Respondent said that Leavy never touched on any of her other complaints.

The Respondent stated that she did not tell Leavy that she was unhappy with the [REDACTED] situation; "that was obviously taken care of," she said. What she did tell him was to solve the rest of the problems and he did not.

She claimed that even though [REDACTED] gave Leavy the name of the child who bruised her, he did not bring that child to the office. He did bring in the two cafeteria teachers, but when he asked them if they knew anything about it, they said no.

As to the complaints with the teacher, the Respondent stated that, in front of her, the teacher spoke with her daughter and said, "Maybe you felt I was treating you unfairly, but I wasn't treating you unfairly."

The Respondent described Leavy as "belittling" her, "talking down" to her. She said that he corrected her grammar every time he could and made her feel inferior. She acknowledged that she was angry but denied raising her voice at any time.

The Respondent stated that Leavy never said anything about the superintendent or that he was someone she could lodge a complaint with. She stated that she was there to make a complaint against the teacher and Leavy refused to take the complaint.

She stated that after speaking for a while, Leavy "slapped" his hands on the desk and said there was nothing he could do. He walked around the desk, opened the door, and gestured for her to leave.

The Respondent testified: "At that point, that's when I said, 'If there is nothing that you can do I'm going to make a complaint against you for not doing what you are supposed to do, or for not, you know, solving whatever it is that we came here to solve,' and that I was going to alert the media." Her purpose, she said, was to alert the media to the lack of supervision at that school.

She denied telling them that because she was a police officer, it would give her more access to making a complaint against Leavy. She testified, "I never made any statement about me being a police officer. I went there as a parent."

The Respondent described Torres as being there at the beginning and then stepping out. She denied telling Ms. Torres that she was going to the media, once Ms. Torres was leaving. She acknowledged that she was angry and “pretty upset at [Leavy].” She further acknowledged that her fiancé was there. She denied ever using any profane language prior to Leavy getting up and opening the door. Additionally, she denied that Leavy ever corrected her for using explicit language or curses against him.

The Respondent added that when Leavy opened the door and gestured for her to leave, he said that they had been there a long time and that he has other children to attend to at the school and that he couldn’t be there all day with hers. The Respondent acknowledged that she was “angry” and “pretty upset” with Leavy for saying that to her and dismissing her that way. She denied yelling at Leavy; she stated that she just wanted to leave so she grabbed her daughter and walked out. Once they walked out of the building she said that she asked Cuevas to come back to the school to get a number so she could make a complaint. She waited in the car for him. When he returned, he told her that the secretary told him that “that building no longer exists, that they don’t have a number to give him.” She stated that she then called 311 and made a complaint to the Board of Education from her cell phone.

She denied ever using the word “motherfucker” or any language like that to get her point across. She confirmed that Cuevas did not speak “the whole time.” She said she never mentioned to Leavy that she planned on moving out of the area in a short time. She testified: “I said that I wanted my daughter to be comfortable where she was at.”

She testified that at some point after the incident, during the month of March, “either the 22nd to the 24th, in the twenties, a week after”, Leavy tried to contact her in

that he had called her brother, whose cell phone number was on the blue contact card. She stated that her brother told Leavy it was hard to contact her because she is a police officer. She stated: "My brother told him I was a Police Officer."

On cross-examination the Respondent indicated that one of the things she went to the school to complain about was the bruise her child had received a month earlier. She stated that March 17, 2006 was the first day she was able to get off because there is a lot of overtime in her command. She then clarified that it was the only time she could get to the school, stating: "I had other things to do, closing on my house, other things." She clarified further that it was the only day off that she was able to get to the school.

She indicated that she could not have sent Cuevas to the school as he is not a good speaker and that she is the sole custodian of her daughter. She said that on the blue contact card in the school, she listed her brother as another adult to contact "in case [her daughter] gets released, or in case she is ill." She acknowledged that she did not send her brother to the school on her behalf to complain about the black and blue mark. She stated that she did not write a letter to the school because she wanted to speak to the principal herself. Nor did she call the school to speak with the vice principal or the principal about the problem.

The Respondent acknowledged that her daughter was afraid to go to school on numerous occasions and that she was specifically afraid of Aoki.

The Respondent indicated that when she went to the office, her daughter went to class. After her daughter was called down to the office, she "stood in the office for the whole remaining of the meeting. She was there, she never exited."

The Respondent indicated that she knew that she had to request a number for the superintendent to make a complaint but denied that she knew how to make a complaint. She testified, "I knew I needed to get a number, that's why I sent my fiancé in to get one for me." She further testified that she needed another individual to tell her how to make a complaint against the principal.

The Respondent acknowledged that the reason why she went to the school that day without an appointment was because she wanted Leavy's undivided attention. She further acknowledged that the last complaint her daughter gave her went back to February and that she had been complaining possibly as far back as January, but she could not say exactly when. The Respondent acknowledged that she never called the school about the problems before she walked into the school on March 17.

She acknowledged that she did not recall the name of the child who gave her daughter the black and blue mark but that she had written it down before the meeting and lost the note.

She acknowledged that she did not have the person who dropped off and picked up her daughter talk to Aoki about the problems nor did she send a note asking Aoki to call her.

The Respondent stated that, before they met, she never received complaints from Aoki that the child was coming to school late. The Respondent stated that she did not remember anything occurring on [REDACTED], her child's birthday.

The Respondent acknowledged that during her Official Department Interview she did not list the problem regarding the hug from [REDACTED] as one of the reasons she went to school on March 17th. Nor did she mention the alleged incident with two girls kissing

during her Official Department Interview. She stated: "During the GO-15, I gave him the reasons why I went to the meeting that popped up into my head."

The Respondent reiterated that she was certain that she identified herself with her driver's license, and not her NYPD identification card, from the moment that she signed into the school. The Respondent agreed that at the Official Department Interview she said that the school officials must have learned that she was a police officer from the contact information form or blue card. She acknowledged that the contact information card (DX 1) was filled out by her and did not list her occupation.

The Respondent agreed that Leavy had not done enough to address her concerns. She stated that Torres was present at the meeting working at her own desk and that "she wasn't in the meeting itself, like conversing with us." She confirmed that the two teachers from the lunchroom came to the meeting to address one of the Respondent's allegations and that Aoki was there, but she still felt that it was not enough.

The Respondent acknowledged that the meeting lasted about two hours and that it was a long meeting.

On re-direct examination she re-affirmed that there were several different problems she sought to address at the meeting.

On questioning by the Court the Respondent denied lifting her middle finger as had been described by Torres. She also denied using the word "fuck" or saying "fuck you." She also denied ever uttering the word "motherfucker."

She denied that Leavy discussed the protocol of punishment with her, stating "he didn't discuss that with me" and "not at all." The Respondent also testified that Leavy

“never spoke about” the fact that the penalty for a five-year-old might be different than for someone older.

She agreed that there was a situation in which [REDACTED] came down and apologized to her daughter but after [REDACTED] left, they did not talk about that incident and they went on to the other remaining issues. She further asserted that there was never an issue with [REDACTED] after the apology and that she was satisfied with the apology; she asserted that she even told the principal that she was satisfied with the apology.

The Respondent explained her dissatisfaction: “I was dissatisfied with the fact that I went there to make a complaint about supervision, and about my daughter, and how she felt, and instead of him accepting the complaint, he tried to alter the complaint, to get my daughter to – I don’t know how to describe it – but to say maybe I was confused, maybe I didn’t see it. I wasn’t really thinking like this. He was more like trying to not, as a supervisor, take a complaint, but trying to not, as a supervisor, take a complaint, but trying to change the purpose of it, or change her feeling.”

She again denied ever saying she was a police officer or a cop, or that she was an employee of the NYPD. Nor did she give Leavy any reason to believe she was employed by the Police Department.

The Respondent also explained that although her employment was not on the blue card in evidence, she implied that it was on a prior blue card. She stated that “before the incident, later on in the school year” she had filled out another blue card, in which she had added her fiancé as an emergency contact.

On re-direct examination the Respondent asserted that she moved around a lot and that each time she would have filled out a new blue card. She asserted that she knows she indicated that she was a police officer on one of the blue cards.

FINDINGS AND ANALYSIS

The main factual issue in this case is whether the Respondent yelled and cursed at School Principal Leavy. Two witnesses said she did; two witnesses said she did not.

The first two witnesses were Leavy and Torres, who was an assistant principal at that school at the time of this incident and is now a principal in her own right of a different school. The two witnesses who said she did not were the Respondent and her husband, who at the time of the incident was her fiancé.

Of all these witnesses, the single most credible one was Torres. She was an assistant principal at the time of the incident and was present for most, but not all of the discussion between the Respondent and Leavy. By all accounts she was not a participant in the discussion and she appears to be merely someone who saw and heard almost all of what went on. Her testimony corroborates and supports that of Leavy.

Torres testified clearly and credibly that as the meeting broke up and the Respondent left the office she used the word “motherfucker” in reference to Leavy and said “fuck you” to him. The Respondent also raised her middle finger at him. This was done at a time and location where it was visible and audible to other adults including employees of the school where Leavy was principal. It was also done in the presence of the Respondent’s daughter and in a location, the main office of a public school, where other children may have been present as well.

Torres corroborates Leavy's claim that the Respondent let it be known that she is a police officer during the discussion.

The Respondent, for her part, admits that she allowed the problems her daughter was having at school to go on for a month during which she did not visit, call or write to the school. She further admits that she came to the school to lodge a complaint. Additionally she admits that she was upset and angry with Leavy who, she claims, talked down to her and tried to influence her daughter through his questioning of her.

The Respondent's denial of using vulgar language is not credible and the testimony of her husband is equally not credible.

There was a great deal of testimony about how Leavy and Torres learned that the Respondent was a police officer. On this matter again, Torres credibly corroborates Leavy's assertion that she identified herself as a police officer during the meeting. Additionally, Torres corroborates that Leavy asked who her commanding officer was after the Respondent's vulgar outburst. The fact that Leavy asked who her commanding officer was provides an additional indication that she had made her status as a police officer known during the meeting.

It is also clear that the Respondent let it be known within the school that she is a police officer. In their rebuttal case, the Department called SSA Nixon-Shaw who testified, credibly, that the Respondent used her NYPD ID when she signed into the school. Although there seems to be nothing inappropriate about this, the Respondent insisted that she used her New York State Driver's License (RX A) as identification when entering the school. Incredibly the Respondent put that driver's license in evidence to demonstrate that the picture on her driver's license shows her in uniform and asserted that

is how the people at the school knew she was a police officer. In addition, the Respondent asserted that although she did not list her employment on the blue card in evidence, she was sure that she indicated that she was a police officer on a prior blue contact card. One way or the other, indeed even by her own account, the Respondent let it be known that she was a police officer and Leavy, Torres and Nixon-Shaw certainly knew that she was a police officer.

The single specification in this case alleges in substance that the Respondent, while off duty did wrongfully engage in conduct prejudicial to the good order, efficiency, and discipline of the Department in that said Officer was belligerent and argumentative toward an individual known to the Department and pointed her finger at said individual's face, called him a "motherfucker" and threatened "to get" him.

It must first be noted that the specification claims these activities occurred in Bronx County. There is ample evidence that this case occurred in Kings County, otherwise known as Brooklyn. This is obviously a ministerial error and therefore this Court finds it necessary and appropriate to conform the pleading to the proof by amending the specification to reflect the proper county of occurrence: Kings County.

The specification also refers to several specific acts, in particular pointing a finger at Leavy's face and threatening "to get" him. The only reference to these specific acts is in the testimony of Leavy. At one point he testified that "she pointed at me very ghetto, very street" (T-28). At another point he testified: "She yelled, screaming profanity, she is going to get everyone, responding to my comment that I intended to report this" (T-30).

As to the comment about “pointing,” Leavy does not specifically refer to pointing to his face as alleged in the specification and it is not clear what the entire statement by Leavy meant. As to the comment about her going “to get” someone it seems from all the testimony that this related only to the threat to go to the “media.” No matter how inappropriate “going to the media” might be, it does not involve a threat of violence and was merely a means for voicing her complaint, something she had a right to do.

Consequently, she is not found guilty of the specific acts of: “pointed a finger at said individual’s face” and “threatened ‘to get’ him.”

With regard to the third specific act, calling him a “motherfucker,” there is ample proof of this conduct coupled with raising a middle finger, a well recognized vulgar gesture, as well as other rude, loud and abusive comments made in a public place in front of other adults and at least one child. There is ample credible evidence that this was part of a course of conduct that was belligerent and argumentative.

Because she is a police officer, because that fact was known and particularly because she made the fact that she is a police officer known, even though it was off-duty, her conduct clearly had a destructive impact on the confidence which it is so important for the public to have in its police officers (see *Alfieri v. Murphy* 38 NY2d 976).

Consequently, the Respondent is found guilty in part of Specification One as modified.

PENALTY

In order to determine an appropriate penalty, the Respondent’s service record was examined. See Matter of Pell v. Board of Education, 34 N.Y.2d 222 (1974).

The Respondent was appointed to the Department on September 29, 2000. Information from her personnel folder that was considered in making this penalty recommendation is contained in the attached confidential memorandum.

The Respondent has been found Guilty of engaging in conduct prejudicial to the good order, efficiency, and discipline of the Department in that while off duty she was belligerent and argumentative toward the principal of a public school and called him a "motherfucker."

The Department Advocate has recommended a penalty of the forfeiture of 30 vacation days and one year dismissal/probation. While a penalty of that severity would not normally be imposed in a case of this nature it must be noted that the Respondent has a prior disciplinary adjudication in which she received a penalty of 25 vacation days for discourtesy to a superior officer.

Some measure of the Respondent's behavior is revealed in how she addressed one of the issues that was raised in her meeting with Leavy. One of her complaints was that a five-year-old male who suffers from [REDACTED] hugged and tried to kiss her daughter. After consulting with the parent, that young man was brought to the office with his grandmother and made to apologize to the Respondent's daughter.

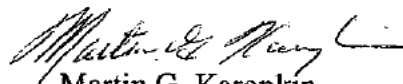
According to both Leavy and Torres, after that child and his grandmother left the Respondent complained that the apology was not sufficient. Both Leavy and Torres testified that Leavy tried to explain the protocol for dealing with a child of that age and yet the Respondent was still dissatisfied. The Respondent, in her testimony, acknowledged disagreeing with Leavy over other things but denied that she was

dissatisfied with action taken by Leavy regarding the hugging incident and even denied that Leavy told her about the protocol of discipline for five-year-olds.

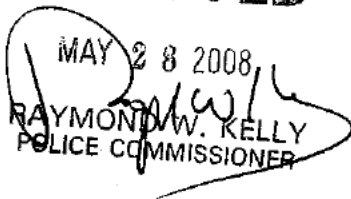
That the Respondent would find it necessary to change her position, after the fact, on this issue is telling of how out of control her anger was at the time of the meeting. It would appear that the Respondent realized that Leavy had handled this matter appropriately and rather than owning up to her error, she lied.

Based on all of the above, this Court recommends that the Respondent be DISMISSED from the New York City Police Department, but that her dismissal be held in abeyance for a period of one year, pursuant to Section 14-115(d) of the Administrative Code, during which time she remains on the force at the Police Commissioner's discretion and may be terminated at any time without further proceedings. In addition, it is recommended that the Respondent forfeit 30 vacation days.

Respectfully submitted,


Martin G. Karopkin
Deputy Commissioner – Trials

APPROVED


MAY 28 2008
RAYMOND W. KELLY
POLICE COMMISSIONER